

HOUSE No. 2478

The Commonwealth of Massachusetts

PRESENTED BY:

John J. Lawn, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting the interests of patients in the event of the sale, relocation or closure of certain physician practices.

PETITION OF:

NAME:

John J. Lawn, Jr.

DISTRICT/ADDRESS:

10th Middlesex

DATE ADDED:

1/17/2025

HOUSE No. 2478

By Representative Lawn of Watertown, a petition (accompanied by bill, House, No. 2478) of John J. Lawn, Jr. relative to the sale, relocation or closure of certain physician practices. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting the interests of patients in the event of the sale, relocation or closure of certain physician practices.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 53H the following section:-

3 Section 53I. (a) A clinic or physician practice registered under section 4A of chapter 112,
4 hereinafter referred to as registered physician practice, shall notify the department not less than
5 180 days prior to any sale, relocation or closure. The department may conduct a public hearing
6 on the proposed sale, relocation or closure not less than 90 days prior to the proposed date of
7 such event. The hearing shall consider the potential impacts of the proposed transaction,
8 including, but not limited to:

9 (i) the potential loss or change in access to services for the population served by the clinic
10 or registered physician practice in the 24 months immediately preceding the notice to sell,
11 relocate or close;

(ii) alternative providers and locations where the population served by the clinic or registered physician practice will be able to obtain the health care services that were provided by the clinic or registered physician practice during the 24 months following the sale, relocation or closure; and

(iii) options available to the department to mitigate the impact of the sale, relocation or closure on patients.

(b) Any clinic or registered physician practice that intends to sell, relocate or close shall notify their patients in writing not less than 90 days prior to the date of such sale, relocation or closure. The written notice shall be sent in a manner prescribed by the department and shall notify the patient that the clinic or registered physician practice shall continue to provide services to the patient for 90 days. Such notice shall also offer the patient resources to assist in finding a substitute health care provider and include the name and contact information for the entity assuming responsibility for the management of the patient's medical records.

SECTION 2. Said chapter 112 is hereby further amended by inserting after section 4 the following section:-

Section 4A. (a) The board shall establish and maintain a registry of all physician practices of greater than 10 physicians engaged in a wholly-owned and controlled group practice; provided, however, that a provider organization registered pursuant to section 11 of chapter 6D shall not be required to register under this section. Any person seeking to maintain a physician practice shall file with the board a registration application containing such information as the board may reasonably require including, but not limited to: (i) the identity of the applicant and of the physicians which constitute the practice; (ii) the identity of any substantial equity investor, as

defined in section 1 of said chapter 6D, of the practice; (iii) any management services organization, as defined in said section 1 of said chapter 6D, under contract with the practice; and (iv) a certified copy of the physician practice's certificate of organization, if any, as filed with the secretary of the commonwealth, or any applicable partnership agreement. The application shall be accompanied by a fee in an amount to be determined pursuant to section 3B of chapter 7. All physician practices registered in the commonwealth shall renew their certificates of registration with the board every 2 years.

SECTION 3. Said chapter 112 is hereby further amended by inserting after section 50 the following section:-

Section 5P. (a) Any physician licensed by the board who intends to terminate a bona fide physician-patient relationship where the physician has a role in the ongoing care and treatment of the patient, shall notify the patient in writing not less than 90 days prior to the date of such termination in a manner prescribed through guidance established by the board. The requirements of this section may be satisfied through notice otherwise consistent with the requirements of this section delivered by the physician's employing entity, including, but not limited to, a physician practice registered pursuant to section 4A.

(b) The notice required under this section shall also offer the patient resources to assist in finding a substitute health care provider and include the name and contact information for the entity assuming responsibility for the management of the patient's medical records. Any physician who terminates a physician-patient relationship without providing notice to a patient as provided for in this section shall be subject to discipline by the board of registration in medicine.

55 SECTION 4. All physician practices required to register pursuant to section 4A of
56 chapter 112 of the General Laws, as inserted by section 129, shall register with the board of
57 registration in medicine not later than October 1, 2026.